TO BE INTRODUCED IN THE SENATE

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further to amend the Code of Criminal Procedure, 1898

WHEREAS Article 9 of the Constitution guarantees that no person shall be deprived of life or liberty save in accordance with law;

AND WHEREAS incidents involving death or life-threatening injury in hospitals, factories, buildings, workplaces, transport systems and other public or private facilities may require immediate criminal investigation and preservation of evidence;

AND WHEREAS registration and investigation of a cognizable offence involving loss of life should not be delayed merely for want of an application from the legal heirs or because a departmental, technical or fact-finding inquiry is pending;

It is hereby enacted as follows:

1. Short title, extent and commencement.

(1) This Act shall be called the **Code of Criminal Procedure (Amendment) Act, 2026.**

(2) It shall extend to the whole of Pakistan.

(3) It shall come into force at once.

2. **Insertion of new section 154A, Act V of 1898**.-In the Code of Criminal Procedure, 1898 (Act V of 1898), after section 154, the following new section shall be inserted, namely:

"154A. Mandatory registration and investigation of cognizable offences involving death or life-threatening injury.

(1) Where information received by an officer in charge of a police station, from any source, gives reasonable grounds to suspect the commission of a cognizable offence involving the death of one or more persons, or life-threatening injury to any person, arising from gross or reckless negligence, breach of a legal duty, an unlawful act or omission, deliberate disregard of a foreseeable danger to human life, or any other circumstances constituting a cognizable offence, the officer shall, without awaiting an application from

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an injured person or legal heir and without awaiting the conclusion of any departmental, technical, fact-finding or other inquiry, record the information as a first information report under section 154 and proceed in accordance with law.

(2) A first information report under subsection (1) may be registered against the person or persons responsible, whether known or unknown. The identity, role and criminal liability of any person, including an owner, occupier, administrator, public servant, professional, contractor or supervisor, shall be determined on the basis of evidence collected during investigation.

(3) Immediately after registration of the case, the officer in charge shall ensure that the place of occurrence is secured, all material physical, documentary, electronic, medical and forensic evidence is identified and preserved, appropriate medical, forensic or technical assistance is obtained where required, all measures required under sections 174 and 176 and other applicable law are taken, and the head of the district police and the Magistrate having jurisdiction are informed.

(4) Where an incident involves two or more deaths, or prima facie involves institutional failure or the conduct of a public servant or senior management of an institution, the investigation shall be entrusted to an officer not below the rank of Deputy Superintendent of Police or to a special investigation team headed by an officer of that rank or above, having no personal or departmental conflict of interest in the matter.

(5) The existence or constitution of any departmental inquiry, technical inquiry, fact-finding committee, Commission of Inquiry or other administrative proceeding shall not bar, suspend or delay registration of the first information report, preservation of evidence or investigation under this Code:

Provided that any relevant material subsequently obtained through such inquiry or proceeding may be supplied to the investigating agency and dealt with in accordance with law.

(6) Nothing in this section shall require the naming or arrest of any person without lawful grounds, nor shall any person be treated as criminally liable merely by reason of holding an office or position. Criminal responsibility shall be determined on the basis of evidence establishing the relevant act or

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omission, legal duty, knowledge or recklessness, and causal connection as required by law.

(7) Any police officer who, without lawful justification, wilfully fails to register information required to be recorded under this section, deliberately delays preservation of material evidence, or knowingly permits its destruction, alteration, concealment or disappearance shall be liable to disciplinary proceedings and, where the facts so warrant, proceedings under the Pakistan Penal Code, 1860 or any other applicable law.

(8) The Provincial Governments and, in relation to the Islamabad Capital Territory, the Federal Government shall prescribe rules or standard operating procedures for the effective implementation of this section, including procedures for immediate reporting by hospitals, rescue services, fire services, building-control authorities, labour and workplace-safety authorities, transport authorities and other relevant bodies.

Explanation.

For the purposes of this section, 'gross negligence' means a serious and substantial departure from the degree of care required by law or reasonably expected in the circumstances, demonstrating reckless disregard for a reasonably foreseeable risk to human life, and does not include a mere error of judgment or an unavoidable accident."

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STATEMENT OF OBJECTS AND REASONS

Incidents involving fires, unsafe buildings, industrial hazards, institutional failures, medical facilities, workplaces, transport systems and other public-safety emergencies may result in death or serious injury in circumstances giving rise to suspicion of criminal negligence or another cognizable offence.

Section 154 of the Code of Criminal Procedure, 1898 requires information relating to the commission of a cognizable offence to be recorded. In serious incidents involving loss of life, however, delay may occur where police await an application from the victims' families or the completion of a departmental, technical or fact-finding inquiry. Such delay may result in the loss, alteration or concealment of material evidence.

The Bill therefore provides an express statutory procedure requiring immediate registration and investigation where available information gives reasonable grounds to suspect a cognizable offence involving death or life-threatening injury. It further provides for timely preservation of evidence and senior, conflict-free investigation in serious or institutionally sensitive cases.

At the same time, the Bill contains safeguards against arbitrary criminal liability. An FIR may initially be registered against unknown responsible persons; no person is required to be named, arrested or treated as criminally liable merely because of the office or position held; and mere errors of judgment and unavoidable accidents are excluded from the definition of gross negligence.

The Bill seeks to strengthen protection of the right to life, ensure timely and lawful criminal investigation, preserve material evidence and determine individual responsibility through evidence in accordance with law.

(SENATOR SAMINA MUMTAZ ZEHRI)

Member-in-Charge

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COMPARATIVE STATEMENT

THE CODE OF CRIMINAL PROCEDURE (AMENDMENT) BILL, 2026

Sr. No.	Original Section / Existing Provision	Amendment Proposed	New Form After Amendment
1.	**Section 154. Information in cognizable cases.** Every information relating to the commission of a cognizable offence if given orally to an officer in charge of a police-station, shall be reduced to writing by him or under his direction, and be read over to the informant; and every such information, whether given in writing or reduced to writing as aforesaid, shall be signed by the person giving it, and the substance thereof shall be entered	**Insertion of new section 154A.** After section 154 of the Code of Criminal Procedure, 1898 (Act V of 1898), a new section 154A shall be inserted. Section 154 itself shall remain unchanged. The new section shall provide for mandatory FIR registration where information gives reasonable grounds to suspect a cognizable offence	**154A. Mandatory registration and investigation of cognizable offences involving death or life-threatening injury.** (1) Where information received by an officer in charge of a police station, from any source, gives reasonable grounds to suspect the commission of a cognizable offence involving the death of one or more persons, or life-threatening injury to any person, arising from gross or reckless negligence, breach of a legal duty, an unlawful act or omission, deliberate disregard of a foreseeable danger to human life, or any other circumstances constituting a cognizable offence, the officer shall, without awaiting an application from an injured

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	in a book to be kept by such officer in such form as the Provincial Government may prescribe in this behalf: Provided that if the information is given by the woman against whom an offence under section 336B, section 354, section 354A, section 376 or section 509 of the Pakistan Penal Code, 1860 (Act XLV of 1860) is alleged to have been committed or attempted, then such information shall be recorded by an investigating officer in presence of a female police officer or a female family member or any other person with consent of the complainant, as the case may be:	involving death or life-threatening injury; immediate preservation of evidence; senior and conflict-free investigation in specified serious cases; continuation of criminal investigation despite departmental or other inquiries; safeguards against automatic naming, arrest or criminal liability; accountability for wilful police failure to act; and implementation through prescribed rules or standard operating procedures.	person or legal heir and without awaiting the conclusion of any departmental, technical, fact-finding or other inquiry, record the information as a first information report under section 154 and proceed in accordance with law. (2) A first information report under subsection (1) may be registered against the person or persons responsible, whether known or unknown. The identity, role and criminal liability of any person, including an owner, occupier, administrator, public servant, professional, contractor or supervisor, shall be determined on the basis of evidence collected during investigation. (3) Immediately after registration of the case, the officer in charge shall ensure that the place of occurrence is secured, all material physical, documentary, electronic, medical and forensic evidence is identified and preserved,

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	Provided further that if the information, given by the woman against whom an offence under section 336B, section 354, section 354A, section 376 or section 509 of the Pakistan Penal Code, 1860 (Act XLV of 1860) is alleged to have been committed or attempted, is distressed, such information shall be recorded by an investigating officer at the residence of the complainant or at a convenient place of the complainant's choice in presence of a police officer or family member or any other person with consent of the complainant, as the case may be. ***Existing position: There is no section 154A***		**appropriate medical, forensic or technical assistance is obtained where required, all measures required under sections 174 and 176 and other applicable law are taken, and the head of the district police and the Magistrate having jurisdiction are informed.** **(4) Where an incident involves two or more deaths, or prima facie involves institutional failure or the conduct of a public servant or senior management of an institution, the investigation shall be entrusted to an officer not below the rank of Deputy Superintendent of Police or to a special investigation team headed by an officer of that rank or above, having no personal or departmental conflict of interest in the matter.** **(5) The existence or constitution of any departmental inquiry, technical inquiry, fact-finding committee, Commission of Inquiry or other administrative proceeding**

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	specifically prescribing a special procedure for mandatory registration, immediate preservation of evidence and investigation in cases involving death or life-threatening injury where commission of a cognizable offence is reasonably suspected.		**shall not bar,** suspend or delay **registration** of the first **information** report, preservation **of evidence or** investigation under **this Code.** ***Provided that*** any relevant material **subsequently** obtained through **such inquiry** or proceeding may be **supplied to** the investigating **agency and** dealt with in **accordance with** law. **(6) Nothing** in this section shall **require the** naming or arrest of any **person without** lawful grounds, **nor shall any** person be treated as **criminally liable** merely by reason **of holding** an office or position. **Criminal responsibility** shall be **determined** on the basis of **evidence establishing** the relevant **act or omission**, legal duty, **knowledge** or recklessness, and **causal connection** as required by **law.** **(7) Any police** officer who, without **lawful justification**, wilfully fails to **register information** required to be

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			recorded under this section, deliberately delays preservation of material evidence, or knowingly permits its destruction, alteration, concealment or disappearance shall be liable to disciplinary proceedings and, where the facts so warrant, proceedings under the Pakistan Penal Code, 1860 or any other applicable law. (8) The Provincial Governments and, in relation to the Islamabad Capital Territory, the Federal Government shall prescribe rules or standard operating procedures for the effective implementation of this section, including procedures for immediate reporting by hospitals, rescue services, fire services, building-control authorities, labour and workplace-safety authorities, transport authorities and other relevant bodies. Explanation. For the purposes of this section, 'gross negligence' means a serious

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			and substantial departure from **the degree of** care required by law **or reasonably** expected in the **circumstances,** demonstrating **reckless disregard for a** reasonably **foreseeable risk to human** life, and **does not include** a mere error of **judgment** or an unavoidable **accident.**

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Legal Justification for the Bill

Article 9 of the Constitution guarantees the right to life and places a corresponding duty upon the State to protect human life through effective laws, investigation and accountability. However, when deaths occur in fires, hospitals, factories, buildings, workplaces or other public-safety incidents, police frequently wait for an application from the victims' families or for completion of a departmental inquiry. Such delay may result in the loss, alteration or concealment of vital evidence.Section 154 of the Code of Criminal Procedure, 1898 requires the police to record information relating to a cognizable offence. Nevertheless, it does not expressly establish a special and uniform procedure requiring police to act on their own information in incidents involving loss of life apparently caused by gross negligence, breach of a statutory duty, an unlawful act or omission, or deliberate disregard of a known danger. This procedural gap often allows avoidable tragedies to be treated merely as administrative failures rather than possible criminal offences.

Depending upon the evidence, such incidents may attract sections 318–319 PPC relating to death caused by a rash or negligent act; sections 321–322 PPC concerning death caused by an unlawful act; section 285 PPC concerning negligent conduct with fire or combustible material; sections 201–203 PPC relating to concealment or destruction of evidence and false information; and sections 166 and 217 PPC concerning deliberate misconduct by public servants. Sections 34, 109 and 120-B PPC may also apply where common intention, abetment or conspiracy is established.

A departmental inquiry or Commission of Inquiry cannot substitute for criminal investigation. Although sections 3, 4, 6, 7 and 10 of the Pakistan Commissions of Inquiry Act, 2017 empower a Commission to investigate matters of public importance, obtain records, conduct searches, engage expert teams and order a police investigation, the police must independently collect admissible evidence under the criminal law. Therefore, the

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registration of an FIR should not be delayed merely because a departmental, technical or fact-finding inquiry is pending.

The proposed amendment accordingly requires police to register an FIR on their own information where the available facts provide reasonable grounds to suspect a cognizable offence involving death or life-threatening injury. It also mandates immediate preservation of physical, documentary, medical, electronic and forensic evidence and provides for a senior and conflict-free investigation in institutionally sensitive cases.

The Bill contains necessary safeguards. An FIR may initially be registered against unknown responsible persons; no individual is to be arrested, named or treated as criminally liable merely because of the office held; and genuine unavoidable accidents or mere errors of judgment are excluded from the meaning of gross negligence. Individual liability must be established through evidence showing the relevant act, omission, duty, knowledge and causal connection.

The proposed amendment is therefore necessary to give practical effect to the constitutional right to life, prevent destruction of evidence, remove dependence upon complaints by grieving families and ensure timely, independent and lawful investigation of avoidable deaths.

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